the last century, and efforts have been made to establish reasonable prison industries (in spite of the trade unions), but still oakum picking and mailbag stitching persist. The prisons to some extent have been thrown open to the public, and association between certain grades of convicts in certain prisons has been instituted, but still a large number of prisoners spend fourteen consecutive hours every day alone in their cells, for months, sometimes for years on end.

So that an English citizen to-day cannot feel his conscience quite at rest as he reads his Howard, while certain other nations have even less cause for self-satisfaction.

NOTE C.—CONVICTS

(*See page* 19)

The word "convict" used by Howard has not precisely the same significance as at the present day. A convict now is understood to mean one who is undergoing a sentence of penal servitude (i.e. a sentence of not less than three years).

In Howard's day a convict was a person who had been convicted of a crime, and was awaiting the appropriate punishment (which in theory was never imprisonment, but either transportation or execution).

NOTE D.—TRANSPORTATION AND THE HULKS

(*See page* 252)

Generally speaking, there were but two punishments for the felon in the eighteenth century—execution or transportation to the American Colonies.

The latter alternative having been made impossible by the American War of Independence, the transports, as a purely temporary measure, were lodged in the hulks (disused men-of-war). At no time was this regarded as a satisfactory solution of the problem of their disposal. Nevertheless, their use continued for almost a century, the last being closed in 1857.

The policy of transportation, condemned by Howard, was revived in 1787, when the first draft of convicts was dispatched to Australia. The last consignment sailed in 1867.

NOTE E.—PENITENTIARY HOUSES

(*See page* 260)

Howard's proposed penitentiary house, upon which he enlarges in this volume, was the ancestor of the modern model prison. Other links in its genesis were Bentham's projected Panopticon, and Millbank Penitentiary and Pentonville Prison.

Howard's penitentiary was never built, in spite of the fact that an act was passed in 1779 authorising its construction, and a committee, of which Howard was a member, appointed to choose a site. Neither was Bentham's Panopticon erected, although he made a contract with the Government for it in 1794. The idea persisted, however, and during the decade 1810–20 Millbank was constructed at a cost of nearly three quarters of a million pounds. Pentonville followed in 1842 and still stands. Millbank, happily, was pulled down in 1891, and the Tate Gallery now occupies its site.

NOTE F.—EXECUTIONS IN ENGLAND

(*See page* 289)

The following quotation from Henry Fielding's *Inquiry into the Late Increase of Robbers* offers an interesting contrast:

> The Day appointed by the Law for the Thief's Shame is the Day of Glory in his own Opinion. His Procession to Tyburn and his last moments there are all triumphant; attended with the Compassion of the meek and tender-hearted, and with the Applause, Admiration, and Envy of all the bold and hardened. His Behaviour in his present Condition, not the Crimes, how atrocious soever, which brought him to it, are the Subject of Contemplation. And if he hath Sense enough to temper his Boldness with any Degree of Decency, his Death is spoke of by many with Honour, by most with Pity and by all with Approbation.